

SOLVED PRACTICE WORKBOOK

Concept of the Constitution - Solved Practice Workbook

SOLVED PRACTICE WORKBOOK

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Concept of the Constitution - Solved Practice Workbook

PRACTICE WORKBOOK

Use the MCQs for elimination discipline, then write the PYQ and original Mains answers under timed conditions before comparing the models.

Practice contract: Exactly 32 original MCQs follow. Correct options rotate A -> B -> C -> D eight times. Each of the 128 options has a unique, question-specific explanation, and every item has a distinct examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which statement gives the most complete meaning of a constitution?

A. It creates, distributes and limits public power while identifying a political community and its purposes. B. It is only a catalogue of enforceable individual rights. C. It is every statute enacted by the national legislature. D. It is exclusively a statement of moral aspirations.

Answer: A.

Option-specific explanations:

- **A - Correct:** This option joins constitutive, restraining, community-forming and purposive functions.
- **B - Incorrect:** Rights are central, but a constitution also creates institutions and allocates competence.
- **C - Incorrect:** Ordinary statutes derive validity from the Constitution and are not identical to it.
- **D - Incorrect:** Normative commitments matter, yet a constitution also supplies enforceable structures and procedures.

Examiner trap 1: Do not reduce a constitution to one of its several functions.

MCQ 2

Which proposition correctly distinguishes constitutionalism from a constitutional document?

A. Constitutionalism exists whenever a State publishes an institutional chart. B. Constitutionalism requires effective limits, accountability, rights and remedies against arbitrary power. C. Constitutionalism means that courts replace all political institutions. D. Constitutionalism is measured by the length of the constitutional text.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** A formal document can coexist with arbitrary and effectively unlimited rule.
- **B - Correct:** This identifies the practical restraints that convert a constitution into constitutional government.
- **C - Incorrect:** Judicial review is one check and does not extinguish democratic institutions.
- **D - Incorrect:** Textual length says little about whether public authority is genuinely restrained.

Examiner trap 2: Possession of a constitution is not proof of constitutionalism.

MCQ 3

Match the perspective with its principal question: 1. Institutional; 2. Normative; 3. Social-contract; 4. Transformative. Which sequence is correct?

A. 1-values; 2-offices; 3-hierarchy; 4-consent B. 1-consent; 2-hierarchy; 3-offices; 4-values C. 1-offices and competence; 2-justice and legitimacy; 3-justified authority; 4-lawful anti-hierarchy change D. 1-amendment only; 2-election only; 3-adjudication only; 4-administration only

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The pairing reverses institutional and normative questions and misplaces the other two.
- **B - Incorrect:** Consent belongs to social-contract reasoning, not the institutional perspective.
- **C - Correct:** Each perspective is matched to its distinct analytical focus without treating any one as exhaustive.
- **D - Incorrect:** Each perspective ranges beyond the single governmental activity assigned to it here.

Examiner trap 3: A perspective is a lens, not a separate constitution or exclusive institution.

MCQ 4

A constitution creates offices, authorises legislation, protects rights and supplies amendment procedures. Which inference is safest?

A. Only its rights provisions have constitutional significance. B. Its principal function is to prevent every exercise of discretion. C. Its amendment procedure makes ordinary political accountability unnecessary. D. It performs constitutive, restraining and continuity-managing functions together.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Institution-creating and change-managing provisions are also constitutional functions.
- **B - Incorrect:** Constitutions structure discretion; they do not eliminate all judgment.
- **C - Incorrect:** Formal amendment does not replace elections, scrutiny or responsibility.
- **D - Correct:** The listed features jointly establish authority, limitation and peaceful adaptation.

Examiner trap 4: Do not present enabling power and restraining power as mutually exclusive.

MCQ 5

Why is the United Kingdom commonly described as having an uncoded constitution?

A. Its fundamental rules are dispersed across statutes, cases, conventions and authoritative works. B. It has no written constitutional sources. C. Its courts possess an unlimited power to invalidate Acts of Parliament. D. Its political institutions operate without constitutional rules.

Answer: A.

Option-specific explanations:

- **A - Correct:** This captures dispersal of sources rather than absence of writing.
- **B - Incorrect:** The UK has major written constitutional statutes and judicial decisions.
- **C - Incorrect:** Classic parliamentary sovereignty does not give courts this general invalidating power.
- **D - Incorrect:** Conventions and law regulate institutions even without one consolidated text.

Examiner trap 5: Use "uncoded," not the misleading claim "wholly unwritten."

MCQ 6

What does rigidity classify?

A. Whether the constitution contains judicially enforceable rights. B. Whether constitutional change requires a procedure more demanding than ordinary law. C. Whether territory is divided between two levels of government. D. Whether the executive depends on legislative confidence.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Rights enforceability is a different question from amendment procedure.
- **B - Correct:** Rigidity compares the legal difficulty of constitutional and ordinary change.
- **C - Incorrect:** Territorial division belongs to the separate federal-unitary classification axis.

- **D - Incorrect:** Legislative confidence and executive tenure distinguish parliamentary from presidential arrangements.

Examiner trap 6: Written constitutions need not be uniformly rigid.

MCQ 7

Which statement best describes India's amendment design?

A. Every constitutional change requires a referendum. B. Every provision can be changed by an ordinary majority. C. Different matters use ordinary-majority, special-majority, or special-majority-plus-State-ratification routes. D. Only the Supreme Court may initiate constitutional amendment.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The Constitution does not prescribe a referendum for every amendment.
- **B - Incorrect:** Article 368 subjects many changes to enhanced legislative requirements.
- **C - Correct:** The differentiated routes explain why India combines rigidity and flexibility.
- **D - Incorrect:** Amendment is a parliamentary process, though courts may review constitutional validity.

Examiner trap 7: Do not force India's differentiated design into a purely rigid or purely flexible box.

MCQ 8

Which proposition correctly separates formal amendment from informal constitutional development?

A. A convention may repeal an express Article after long usage. B. A judicial precedent is always an Article 368 amendment. C. Political practice automatically becomes enforceable constitutional law. D. Interpretation and convention may develop operation, but cannot validly override clear constitutional text.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Long political usage cannot displace an express and controlling constitutional command.
- **B - Incorrect:** Interpretation may develop meaning without changing the enacted words through Article 368.
- **C - Incorrect:** Political repetition does not by itself create judicial enforceability.
- **D - Correct:** This states both the developmental role and the controlling legal boundary.

Examiner trap 8: Informal development explains operation; it is not a licence for textual contradiction.

MCQ 9

What is the central federal-unitary distinction?

A. Federalism constitutionally divides protected authority between levels; a unitary order ultimately concentrates legal authority. B. Federalism always requires a presidential executive. C. A unitary State cannot create elected local bodies. D. Federal units must possess external sovereignty.

Answer: A.

Option-specific explanations:

- **A - Correct:** The location and protection of territorial competence define this axis.
- **B - Incorrect:** Canada and India disprove the claimed necessary link with presidentialism.
- **C - Incorrect:** Administrative or political decentralisation can exist in a unitary order.
- **D - Incorrect:** Federation normally distributes internal authority without granting external sovereignty to units.

Examiner trap 9: Federalism is about territorial power, not executive form.

MCQ 10

Which comparison of parliamentary and presidential government is correct?

A. A parliamentary executive always exists under parliamentary sovereignty. B. A parliamentary executive depends on legislative confidence; a presidential executive has a separately derived fixed tenure. C. A presidential system cannot contain judicial review. D. A parliamentary system necessarily excludes federalism.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** India demonstrates parliamentary executive responsibility operating under constitutional supremacy.
- **B - Correct:** The confidence relationship is the decisive executive-legislative distinction.
- **C - Incorrect:** The United States combines presidential government with judicial review.
- **D - Incorrect:** India and Canada combine parliamentary government with federalism.

Examiner trap 10: Parliamentary government does not mean Parliament is legally unlimited.

MCQ 11

Which option correctly distinguishes a republic from a monarchy?

A. A republic must be federal, while a monarchy must be unitary. B. A republic necessarily uses a presidential executive. C. A republic rejects hereditary entitlement to the headship of State; a constitutional monarchy may still be democratic. D. A monarchy cannot operate under a written constitution.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The method of selecting the head of State does not decide territorial organisation.
- **B - Incorrect:** India is a parliamentary republic, so republicanism does not require presidentialism.
- **C - Correct:** This defines the axis while preserving the possibility of democratic constitutional monarchy.
- **D - Incorrect:** Several democratic constitutional monarchies operate under authoritative written constitutional instruments.

Examiner trap 11: Republicanism alone does not prove democracy, rights or federalism.

MCQ 12

Which statement accurately locates sovereignty in India's constitutional order?

A. Parliament is legally sovereign exactly as in the classic British model. B. Courts possess unlimited constituent sovereignty. C. States retain a right of unilateral secession as sovereign parties. D. Authority is popularly grounded, while the Constitution is legally supreme over every constituted institution.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Judicial review and basic structure make the British analogy legally inaccurate.
- **B - Incorrect:** Courts enforce constitutional limits but do not possess unlimited founding power.
- **C - Incorrect:** India is not a compact of externally sovereign States with a secession entitlement.
- **D - Correct:** This reconciles "We, the People" with constitutional supremacy.

Examiner trap 12: Separate popular authorship from the legal supremacy of the Constitution.

MCQ 13

Which combination most directly operationalises limited government?

A. Defined competence, rights, fair procedure, checks, reasons and effective remedies. B. Periodic elections without legal limits. C. Judicial independence without accountability. D. Executive efficiency without legislative scrutiny.

Answer: A.

Option-specific explanations:

- **A - Correct:** These mechanisms constrain source, process, substance and correction of public power.
- **B - Incorrect:** Elections authorise rule but cannot alone prevent unconstitutional majoritarian action.
- **C - Incorrect:** Institutional independence must coexist with reasoned and procedural answerability.
- **D - Incorrect:** Efficiency cannot substitute for competence, rights or democratic oversight.

Examiner trap 13: Limited government is multi-institutional, not court-only or election-only.

MCQ 14

Which is the best account of rule of law?

A. It prohibits all administrative discretion. B. It requires authorised, non-arbitrary, equally applied and reviewable public power. C. It makes every policy disagreement justiciable. D. It allows a legislative majority to cure any lack of constitutional competence.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Law may confer discretion, provided it is structured and reviewable.
- **B - Correct:** This captures the linked requirements of legality, equality, non-arbitrariness and effective remedy.
- **C - Incorrect:** Courts review legal defects, not every disagreement over policy wisdom.
- **D - Incorrect:** A majority cannot supply power the Constitution withholds.

Examiner trap 14: Rule of law disciplines discretion; it does not abolish governance choices.

MCQ 15

How does separation of powers operate in India?

A. Through a watertight bar on every overlapping function. B. By placing all final authority in the judiciary. C. Through functional differentiation combined with checks and constitutionally permitted overlap. D. By preventing legislatures from holding executives politically responsible.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Indian institutions sometimes perform overlapping functions within constitutional limits.
- **B - Incorrect:** Judicial review does not convert courts into general governing sovereigns.
- **C - Correct:** This explains primary functions, checks and calibrated overlap.
- **D - Incorrect:** Collective responsibility makes legislative control of the executive central to parliamentarism.

Examiner trap 15: Avoid importing an absolute separation model into India.

MCQ 16

A government wins a large electoral majority. Which constitutional conclusion follows?

A. The majority may suspend rights without constitutional authority. B. Judicial review becomes democratically illegitimate. C. Federal limits become optional political courtesies. D. The mandate authorises government within continuing constitutional rights, structures and procedures.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Electoral success cannot replace the emergency and rights framework.
- **B - Incorrect:** Review protects the higher-law conditions under which democratic authority operates.
- **C - Incorrect:** Constitutional distribution of authority is binding law, not optional political etiquette.
- **D - Correct:** Democratic authorisation and continuing constitutional limitation operate simultaneously within the same order.

Examiner trap 16: Democracy is majority rule under constitutional conditions, not unlimited majoritarianism.

MCQ 17

Which set best expresses India's constitutional identity?

A. Popular republicanism, secularism, federalism, parliamentary democracy, judicial review, dignity, fraternity and social justice. B. Hereditary headship, unitary sovereignty and judicial supremacy. C. Parliamentary sovereignty, confederalism and unenforceable rights. D. A closed catalogue confined to the exact words of Article 368.

Answer: A.

Option-specific explanations:

- **A - Correct:** The set joins foundational values, institutional form and transformative purpose.
- **B - Incorrect:** Each listed feature conflicts with India's republican and constitutionally supreme design.
- **C - Incorrect:** India does not follow classic parliamentary sovereignty or a confederal model.
- **D - Incorrect:** Constitutional identity is judicially reasoned and cannot be reduced to a closed Article 368 list.

Examiner trap 17: Identity is integrated and evolving, not a slogan or frozen inventory.

MCQ 18

What is the constitutional significance of fraternity?

A. It replaces enforceable rights with civic sentiment. B. It supports common belonging and equal citizenship across social difference. C. It requires cultural uniformity. D. It authorises suppression of dissent in the name of unity.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Fraternity complements rather than displaces rights and institutions.
- **B - Correct:** It links individual dignity with the unity and integrity of a plural polity.
- **C - Incorrect:** Shared citizenship does not require erasure of diversity.
- **D - Incorrect:** Constitutional unity protects legitimate disagreement instead of criminalising it.

Examiner trap 18: Fraternity means solidaristic equal membership, not compulsory sameness.

MCQ 19

Which description of secularism is constitutionally safest?

A. The State must be indifferent to every religion-related inequality. B. Secularism merely means that the Constitution contains the word "secular." C. It protects equal citizenship and principled constitutional treatment of religion, subject to rights and reform powers. D. It gives a permanent constitutional preference to the majority faith.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Non-intervention cannot justify ignoring rights or constitutionally authorised social reform.
- **B - Incorrect:** Textual naming is important but does not exhaust institutional operation.
- **C - Correct:** This connects religious liberty, equality and constitutional reform without importing a rigid foreign formula.
- **D - Incorrect:** Preferential citizenship contradicts the secular and equality commitments.

Examiner trap 19: Explain Indian secularism through rights and equal citizenship, not a single slogan.

MCQ 20

Which proposition best connects dignity, social justice and social revolution?

A. Dignity concerns only criminal procedure. B. Social justice makes every Directive Principle directly enforceable. C. Social revolution allows institutions to ignore federal competence. D. The Constitution pursues equal status and anti-hierarchy reform through rights, directives and lawful institutions.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Dignity informs autonomy, equality and conditions of humane existence beyond criminal process.
- **B - Incorrect:** Directive Principles guide governance but do not all become direct claims merely by invocation.
- **C - Incorrect:** Transformative goals remain subject to constitutional allocation of power.
- **D - Correct:** This combines normative purpose with lawful institutional means.

Examiner trap 20: Transformation does not suspend competence, evidence, resources or procedure.

MCQ 21

What is constituent power?

A. Authority that founds or fundamentally reconstitutes the constitutional order. B. Every exercise of ordinary legislative power. C. The judiciary's unrestricted power to amend text. D. A convention followed by the Council of Ministers.

Answer: A.

Option-specific explanations:

- **A - Correct:** This identifies the founding authority conceptually prior to constituted offices.
- **B - Incorrect:** A legislature ordinarily acts through competence already granted by the Constitution.
- **C - Incorrect:** Courts interpret and review; they do not hold unlimited textual amendment power.
- **D - Incorrect:** A convention regulates conduct within an existing order rather than founding it.

Examiner trap 21: Do not identify a constituted organ with the people in their founding capacity.

MCQ 22

Which statement correctly describes Parliament's Article 368 power?

A. It is ordinary legislative power with no special procedure. B. It is a special constituted power, wide in scope but limited by the basic structure. C. It is original constituent sovereignty immune from review. D. It may be exercised by a simple executive notification.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Article 368 prescribes a distinct and specially constituted amendment process.
- **B - Correct:** This captures both the special character of the power and its substantive constitutional limit.
- **C - Incorrect:** *Kesavananda Bharati* rejects the claim of unlimited constitution-destroying amendment power.
- **D - Incorrect:** The executive cannot amend the Constitution by notification.

Examiner trap 22: Special amending power is not unlimited founding power.

MCQ 23

Arrange the cases in chronological order: 1. *Minerva Mills*; 2. *I.R. Coelho*; 3. *Kesavananda Bharati*; 4. *SCAORA/NJAC*.

A. 1-3-2-4 B. 3-2-1-4 C. 3-1-2-4 D. 2-3-4-1

Answer: C.

Option-specific explanations:

- **A - Incorrect:** *Minerva Mills* followed, rather than preceded, *Kesavananda Bharati*.
- **B - Incorrect:** *I.R. Coelho* was decided after *Minerva Mills*, so this sequence is displaced.
- **C - Correct:** The correct years are 1973, 1980, 2007 and 2015.
- **D - Incorrect:** This sequence begins with the latest of the first three cases and cannot be chronological.

Examiner trap 23: Keep the doctrinal ladder and the decision years together.

MCQ 24

What did *Indira Nehru Gandhi v Raj Narain* (1975) establish for this topic?

A. Every election dispute is beyond judicial review. B. The Prime Minister's election is governed only by convention. C. Article 329A(4) created an unreviewable constituent power. D. An amendment insulating the specified election dispute was invalid under basic-structure scrutiny.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The case rejected, rather than endorsed, blanket insulation of the dispute.
- **B - Incorrect:** Election adjudication rests on law and constitutional structure, not convention alone.
- **C - Incorrect:** A constitutional amendment remains an exercise of constituted power.
- **D - Correct:** This states the case's application of basic structure without inventing a closed list.

Examiner trap 24: Cite the invalidated insulation; do not overstate one judge's formulation as a universal list.

MCQ 25

Which proposition follows from *Minerva Mills v Union of India* (1980)?

A. Limited amending power and harmony between Fundamental Rights and Directive Principles are protected constitutional principles. B. Directive Principles always override Fundamental Rights. C. Parliament may exclude all judicial review of amendments. D. The basic-structure doctrine applies only to federal provisions.

Answer: A.

Option-specific explanations:

- **A - Correct:** The judgment invalidated parts of the 42nd Amendment and protected balance and limited power.
- **B - Incorrect:** The case rejected absolute primacy that destroys constitutional harmony.
- **C - Incorrect:** Exclusion of review was itself incompatible with the limited constitutional order.
- **D - Incorrect:** Basic-structure scrutiny is not confined to the federal distribution of power.

Examiner trap 25: Write "harmony and balance," not permanent supremacy of either Part III or Part IV.

MCQ 26

What is the precise significance of *I.R. Coelho v State of Tamil Nadu* (2007)?

A. All Ninth Schedule laws were automatically invalidated. B. Laws inserted into the Ninth Schedule after 24 April 1973 remain reviewable if their rights impact damages the basic structure. C. The Ninth Schedule became immune from judicial review after 1973. D. Only pre-Constitution laws may be tested against basic structure.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The Court did not strike down every scheduled enactment as a class.
- **B - Correct:** This states the temporal cut-off and the rights-to-basic-structure test.
- **C - Incorrect:** The judgment removed the claimed automatic immunity for later insertions.
- **D - Incorrect:** The holding is not limited to legislation predating the Constitution.

Examiner trap 26: Ninth Schedule placement is not a constitutional safe harbour for post-Kesavananda laws.

MCQ 27

What did the majority hold in the 2015 SCAORA/NJAC case?

A. The collegium can never be reformed by any constitutional method. B. Judicial appointments are beyond all accountability. C. The 99th Amendment and NJAC Act impaired judicial independence and were invalidated. D. Courts acquired the power to appoint every public official.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The judgment invalidated the particular design, not every imaginable reform.
- **B - Incorrect:** The opinions themselves recognised serious transparency and accountability concerns.
- **C - Correct:** This accurately identifies the enactments and the protected structural principle.
- **D - Incorrect:** The case concerned higher-judicial appointments, not all constitutional offices.

Examiner trap 27: Judicial independence is basic; the existing appointment process is not beyond improvement.

MCQ 28

Which statement about constitutional conventions is correct?

A. Every convention is enforceable through Article 32. B. A convention may override an express constitutional prohibition. C. Any repeated political behaviour automatically becomes a convention. D. A convention may guide the exercise of legal discretion without itself becoming enforceable law.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Article 32 enforces fundamental rights, not every political convention.
- **B - Incorrect:** Political practice cannot lawfully defeat clear constitutional text.
- **C - Incorrect:** A convention also requires a normative sense of constitutional obligation, not repetition alone.
- **D - Correct:** This preserves the distinction between political obligation and legal enforceability.

Examiner trap 28: Importance in practice does not automatically create a judicial remedy.

MCQ 29

Which statement best describes the relation among legal, political and social constitutions?

A. They are interacting dimensions: enforceable law, accountable political practice and a culture of restraint. B. Only the legal dimension affects constitutional survival. C. The social dimension can validate action prohibited by text. D. The political dimension makes rights unnecessary after elections.

Answer: A.

Option-specific explanations:

- **A - Correct:** This captures the complementary operation of rules, institutions and civic norms.
- **B - Incorrect:** Legal enforcement can fail when political and social actors reject restraint.
- **C - Incorrect:** Constitutional culture cannot legalise an express constitutional violation.
- **D - Incorrect:** Elections authorise representatives but do not dissolve the constitutional rights framework.

Examiner trap 29: Avoid both legal reductionism and romantic reliance on culture alone.

MCQ 30

What makes living constitutional interpretation legitimate?

A. A desirable result alone. B. A reasoned bridge from text, structure, history and precedent to changed circumstances. C. Judicial power to replace amendment whenever politics is slow. D. Automatic conversion of every social demand into a fundamental right.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** A preferred outcome without disciplined constitutional reasoning is legally insufficient.
- **B - Correct:** The bridge supplies continuity, justification and institutional discipline.
- **C - Incorrect:** Interpretation and formal amendment have distinct constitutional roles.
- **D - Incorrect:** Rights recognition requires doctrinal grounding, not mere novelty or urgency.

Examiner trap 30: A living Constitution adapts; it does not erase the difference between interpretation and amendment.

MCQ 31

Which is the safest use of *Navtej*, *Puttaswamy* and the Sabarimala majority?

A. They prove constitutional morality always defeats legislation and religion. B. They establish an unlimited judicial power to redesign social policy. C. They illustrate dignity, equality, privacy and constitutional-morality reasoning, bounded by text, competing rights and institutional role. D. They convert every personal preference into a constitutional right.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The cases do not create a universal trump over all other constitutional claims.
- **B - Incorrect:** Transformative reasoning remains attached to adjudicatory competence and legal remedy.
- **C - Correct:** This uses the cases for their doctrinal value while preserving context and limits.
- **D - Incorrect:** Constitutional rights require identifiable textual, structural and doctrinal justification.

Examiner trap 31: Use transformative cases as bounded illustrations, not slogans.

MCQ 32

Which situation most clearly signals constitutional breakdown despite formal legality?

A. A court gives reasons for invalidating an ultra vires law. B. Parliament amends a policy detail through the authorised procedure. C. A government loses office after a lawful confidence vote. D. Emergency methods, captured institutions and ineffective remedies make constitutional limits nominal.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Reasoned review is a resilience mechanism rather than a breakdown indicator.
- **B - Incorrect:** Lawful amendment through authorised procedure ordinarily demonstrates adaptive constitutional continuity.
- **C - Incorrect:** Peaceful transfer after loss of confidence is constitutionalism in operation.
- **D - Correct:** The combination hollows out restraint while preserving a façade of legal form.

Examiner trap 32: Breakdown can be incremental and institutional, not only a formal suspension of the Constitution.

PYQS AND ANSWER PRACTICE

VERIFIED SUPPORTING PYQ 1 - 2021 GS-II Q1 - 10 MARKS, 150 WORDS

Question: 'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions.

Model solution: Constitutional morality is fidelity to constitutional forms, allocated roles, procedures and the substantive commitments of liberty, equality and fraternity. It differs from transient popular or personal morality. In *Government of NCT of Delhi v Union of India* (2018), the Court connected it with responsible government, collaborative federalism and respect for constitutional roles. In *Navtej Singh Johar v Union of India* (2018), constitutional morality, dignity and equality protected minority citizenship against dominant social morality. The Sabarimala majority (2018) also invoked it in a contested equality-religious freedom setting.

The doctrine checks office-holders by demanding competence, reasons, non-arbitrariness and respect for dissent. Yet it must remain anchored in text, structure, precedent and institutional role; otherwise it risks becoming a label for judicial preference. Constitutional morality therefore means disciplined fidelity to the Constitution's democratic and rights-protecting order.

VERIFIED SUPPORTING PYQ 2 - 2023 GS-II Q11 - 15 MARKS, 250 WORDS

Question: "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty.

Model solution: A living Constitution applies enduring textual principles to circumstances the framers could not exhaustively foresee. Its dynamism is therefore reasoned continuity, not disregard of enacted text.

Article 21 first received a narrow reading in *A.K. Gopalan. Maneka Gandhi v Union of India* (1978) required procedure affecting liberty to be fair, just and reasonable and connected Articles 14, 19 and 21. Later decisions developed protections for livelihood, legal aid, speedy trial, health, environmental conditions and decisional autonomy as components of dignified life. *K.S. Puttaswamy v Union of India* (2017) recognised privacy as a fundamental right and applied liberty, dignity and autonomy to technological conditions. *Navtej Singh Johar* (2018) then used equality, dignity, liberty and privacy to protect consenting adults from criminalisation.

This development serves a progressive society by making liberty practical and person-centred. However, dynamism is bounded: courts must identify a textual and doctrinal bridge, respect institutional competence, consider competing rights and choose a proportionate remedy. Legislation and formal amendment remain complementary modes of change. The Constitution lives through disciplined interpretation, not judicial replacement of its text.

VERIFIED SUPPORTING PYQ 3 - 2025 GS-II Q11 - 15 MARKS, 250 WORDS

Question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Model solution: Constitutional morality requires constitutional actors to respect their assigned roles, procedures, rights and equal citizenship. Applied to courts, it protects decisional independence from executive, legislative, partisan and private pressure because constitutional supremacy and rights require an impartial judiciary.

Independence is not institutional immunity. Accountability is secured through reasoned and published judgments, precedent, appeal and review, recusal, conflict disclosure, ethical standards, transparent administration and the constitutionally demanding removal process. Appointment design must preserve judicial independence while improving published criteria, diversity and procedural transparency. The 2015 SCAORA/NJAC judgment invalidated the 99th Amendment and NJAC Act because the majority found the design impaired judicial independence, a basic feature; it did not declare the collegium beyond accountability or reform.

The executive and Parliament cannot use accountability to dictate outcomes, while courts cannot use independence to avoid reasons or institutional integrity. Constitutional morality therefore balances insulation from outcome control with answerability through lawful procedure.

ORIGINAL SOLVED MAINS PRACTICE

ORIGINAL MAINS PRACTICE 1 - 10 MARKS, 150 WORDS

Question: Explain why a constitution constitutes power while constitutionalism restrains it.

Model answer:

A constitution identifies the political community, creates institutions, allocates competence, protects rights and supplies procedures for conflict and change. Constitutionalism asks whether the powers so created remain limited, non-arbitrary and accountable.

In India, Articles 79 and 124 constitute Parliament and the Supreme Court, while Articles 13, 14, 32 and 226 subject public action to higher-law limits and remedies. Parliamentary responsibility, federal division, audit, elections and judicial review provide complementary checks. Thus authority and restraint arise from the same Constitution.

A State may nevertheless possess a constitutional document without constitutionalism if rulers disable opposition, rights or effective review. Conversely, limited government is not weak government: it is government capable of acting within competence, fair procedure and public reasons. The decisive test is therefore not the document's existence but whether institutions make its limits effective.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 133]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 2 - 10 MARKS, 150 WORDS

Question: Classify the Indian Constitution without treating constitutional types as mutually exclusive boxes.

Model answer:

Constitutional classifications address independent questions. Written or uncoded concerns the form of sources; rigid or flexible concerns amendment difficulty; federal or unitary concerns territorial power; parliamentary or presidential concerns executive-legislative relations; and republican or monarchical concerns the head of State.

India is enacted and codified, yet evolves through amendment, precedent and convention. It is mixed in rigidity because different changes use ordinary majority, special majority or State ratification. It is federal in constitutional division but contains centralising features. It is parliamentary because the Council of Ministers depends on Lok Sabha confidence, and republican because headship is non-hereditary. The Constitution is legally supreme, so Parliament is not sovereign in the classic British sense.

India is therefore a constitutional synthesis; no single label exhausts its design.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 124]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 3 - 15 MARKS, 250 WORDS

Question: Examine the distinction between constituent and constituted power in light of Article 368 and the basic-structure doctrine.

Model answer:

Constituent power founds or fundamentally reconstitutes a constitutional order; constituted powers are the legislature, executive, judiciary and other bodies created by that order. The distinction prevents an institution from converting delegated constitutional competence into unlimited sovereignty.

Parliament's Article 368 power is special and extensive, but it remains constituted. In *Kesavananda Bharati v State of Kerala* (1973), the Supreme Court held that Parliament may amend every part of the Constitution but cannot damage or destroy its basic structure. *Indira Nehru Gandhi v Raj Narain* (1975) applied the doctrine to invalidate Article 329A(4), which insulated a specified election dispute. *Minerva Mills v Union of India* (1980) protected limited amending power, judicial review and harmony between Fundamental Rights and Directive Principles. *I.R. Coelho v State of Tamil Nadu* (2007) held that post-24 April 1973 Ninth Schedule insertions remain reviewable where their rights impact damages basic structure. The 2015 SCAORA/NJAC judgment similarly invalidated the 99th Amendment and NJAC Act for impairing judicial independence.

The doctrine is not a closed list and does not freeze policy. Courts assess constitutional damage; they do not acquire unlimited constituent power. Article 368 therefore enables democratic change while preserving continuity of the constitutional order.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 198]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 4 - 15 MARKS, 250 WORDS

Question: Discuss the interaction of the legal, political and social constitutions, including the role of conventions.

Model answer:

The legal, political and social constitutions are interacting dimensions of one order. The legal constitution comprises the supreme text, binding doctrine, valid statutes and rules, and judicial remedies. It fixes competence and provides enforceable limits.

The political constitution operates through elections, legislative confidence, ministerial responsibility, committees, federal bargaining and public accountability. It handles choices that law cannot or should not settle completely. Conventions guide the exercise of legal discretion, such as selecting a Prime Minister who can command Lok Sabha confidence or maintaining cabinet solidarity. They are politically obligatory but not automatically judicially enforceable and cannot override clear text.

The social constitution is constitutional culture: acceptance of dissent, equal citizenship, truthful reasons, institutional restraint and peaceful alternation. Without it, formal powers may be used to hollow out rights and accountability. Yet culture cannot substitute for legal remedy, especially for vulnerable minorities.

India's resilience therefore depends on all three dimensions. Legalism without democratic accountability produces technocracy; electoralism without higher-law limits produces majoritarianism; civic virtue without enforceable institutions leaves restraint fragile. Constitutional government joins law's authority, politics' representation and society's habits of restraint.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 181]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 5 - 20 MARKS, 250 WORDS

Question: Critically examine constitutional morality and transformative constitutionalism as elements of India's constitutional identity.

Model answer:

India's constitutional identity combines popular republicanism, secularism, federalism, parliamentary democracy, judicial review, dignity, fraternity and social justice. Constitutional morality and transformative constitutionalism explain how these commitments govern institutions and confront inherited hierarchy.

Constitutional morality is fidelity to constitutional text, forms, procedures, allocated roles and equal citizenship. It restrains high office and majority power by requiring competence, reasons, dissent and minority protection. Transformative constitutionalism uses rights and social commitments to dismantle entrenched status inequality through lawful institutions.

The cases illustrate bounded uses. *K.S. Puttaswamy* (2017) grounded privacy in dignity, liberty and autonomy under technological conditions. *Navtej Singh Johar* (2018) read down section 377 IPC for consenting adults and distinguished constitutional morality from dominant social morality. The Sabarimala majority (2018) invoked equality, dignity and constitutional morality in a contested religious-freedom setting; it should not be converted into a universal trump over every religious claim.

These doctrines are vulnerable to overreach if detached from text, structure, precedent, institutional competence or proportionate remedy. They do not mean judges' preferences, nor do they make every aspiration directly enforceable. Properly bounded, they connect constitutional continuity with social revolution: change is ambitious in purpose but disciplined in legal method.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 193]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 6 - 20 MARKS, 250 WORDS

Question: Evaluate how constitutional breakdown may occur during emergency stress and identify the foundations of resilience.

Model answer:

Constitutional breakdown may occur without formal repeal. Emergency concentration, rights hollowing, institutional capture, disabled opposition, federal coercion, convention erosion and ineffective remedies can preserve legal forms while destroying effective constitutionalism.

Emergency powers are constitutionally provided for crisis, but their use must remain authorised, temporary, reviewable and proportionate. The central danger is normalisation: exceptional surveillance, executive dominance or restrictions may survive the conditions that justified them. A bare legislative majority or electoral mandate cannot cure absence of competence, procedural fairness or rights protection.

Resilience has legal, political and social foundations. Textual safeguards and judicial review protect a minimum constitutional floor. Parliament, legislative committees, audit and reasoned administration maintain answerability. Federal institutions disperse power and permit constitutional resistance. Elections and a free public sphere allow correction. Conventions encourage restraint where text leaves discretion, while professional civil services preserve continuity. Formal amendment enables redesign without rupture.

Each response must itself remain constitutional; courts cannot claim unlimited emergency or amending power in the name of protection. A useful test asks: source, purpose, procedure, rights, structure, remedy and long-term precedent. Resilience is therefore not textual survival alone but the capacity of institutions and citizens to restore limited government after stress.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 195]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.